Galveston County District Court

Cause No. 2025-CV-0045

Kevin Nicholson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Kevin Nicholson

Date:	March 29, 2026
Location:	Offices of Bauer & Bryant Law Group
Examining attorney:	Marilyn Fox, Ashford & Lyle LLP
Defending attorney:	Michael Duncan, Bauer & Bryant Law Group

Q: Please state your full name for the record.

A: I'd rather not give my full name on the record, if that's all right. You can use "the plaintiff."

Q: That's fine for today. Can you tell me where you were when the collision happened?

A: I was driving westbound on the freeway service road near Katy, Texas. I was in the right lane, heading toward my office.

Q: What were you doing right before impact?

A: Traffic was slowing up ahead, so I was moving over to the left lane to get around a delivery truck that was stopped in my lane. I checked my mirror, I saw the car behind me, and I thought there was room.

Q: Did you use your turn signal?

A: I believe I did. I'm not one hundred percent certain, but I always signal when I change lanes.

Q: What happened next?

A: The other car came up in the lane beside me much faster than I expected. It clipped my front quarter panel and pushed me toward the median. The steering wheel jerked and I hit the brakes hard.

Q: Did you strike anything else?

A: No, I stayed on the road, but my right knee slammed into the lower part of the dashboard when the car jolted. That's when I first felt the pain.

Q: When did you first seek medical treatment?

A: My husband drove me to the urgent care clinic that same afternoon. The knee was swollen and I couldn't fully straighten it. They took X-rays and told me to follow up with an orthopedic doctor.

Q: Did you follow up with an orthopedist?

A: Yes. I had an MRI, and the doctor said I had a torn meniscus. I started physical therapy twice a week, and I had a steroid injection about a month after the accident.

Q: How has the knee affected your daliy activities?

A: It's been hard. I used to walk my dog every morning, and now I need a short rest halfway. Stairs are difficult, especially going down. I had to stop playing in my weekend recreational soccer league, which I had been doing for years.

Q: Have you returned to work?

A: I did, but I work at a desk now, and I've had to take more breaks to stand up and move. Some days I leave early because the swelling flares up.

Q: Are you currently receiving any ongoing treatment?

A: Yes, I still go to physical therapy, and my doctor has mentioned that I may need surgery if it doesn't improve.

Q: Thank you. Let's take a short break.